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POLITY

Indian Constitution at Work — Part 3

Class 11

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Chapter 1

Constitution: Why and How

A constitution is the supreme law that defines the structure of government, distributes powers and guarantees rights to citizens. The Indian Constitution was framed by the Constituent Assembly between 1946 and 1949 under the chairmanship of Dr. Rajendra Prasad, with the Drafting Committee led by Dr. B.R. Ambedkar. It draws from various sources: parliamentary government from Britain, fundamental rights from the US Bill of Rights, and directive principles from the Irish Constitution. The Constitution establishes India as a sovereign, socialist, secular, democratic republic and balances unity with diversity through federalism with unitary features.

Chapter 2

Fundamental Rights

Fundamental Rights are guaranteed under Part III of the Constitution and are enforceable by courts. They include the right to equality, right to freedom, right against exploitation, right to freedom of religion, cultural and educational rights, and the right to constitutional remedies. Dr. Ambedkar called the right to constitutional remedies the heart and soul of the Constitution. These rights protect individuals from arbitrary state action and promote dignity and liberty. Reasonable restrictions may be imposed in the interest of public order, morality and national security.

Chapter 3

The Judiciary

The judiciary is the guardian of the Constitution and protector of fundamental rights. India has an integrated and independent judiciary with the Supreme Court at the apex, High Courts at the state level and subordinate courts below. The Supreme Court exercises original, appellate, advisory and special leave jurisdictions. Judicial review empowers courts to strike down laws and executive actions that violate the Constitution. Public Interest Litigation has democratized access to justice, allowing public-spirited individuals to approach courts on behalf of marginalized groups.